

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sebastian Saavedra	Team: Squad #01	CCRB Case #: 201903723	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/11/2018 1:25 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/26/2021	Precinct: 67		
Date/Time CV Reported Wed, 05/01/2019 5:10 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/01/2019 5:10 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SSA Charles Schwartz	05458	947478	067 PCT
2. DTS Matthew Walker	18702	959352	067 PCT
3. POM Hector Casillas	30712	952552	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Devin Baker	1595	952439	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SSA Charles Schwartz	Abuse: Sergeant Charles Schwartz stopped § 87(2)(b)	A . Substantiated
B . POM Hector Casillas	Abuse: Police Officer Hector Casillas frisked § 87(2)(b)	B . Substantiated
C . POM Hector Casillas	Abuse: Police Officer Hector Casillas searched § 87(2)(b)	C . Substantiated
D . SSA Charles Schwartz	Abuse: Sergeant Charles Schwartz threatened to arrest § 87(2)(b)	D . Exonerated
E . SSA Charles Schwartz	Abuse: Sergeant Charles Schwartz failed to provide § 87(2)(b) with a business card.	E . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint on May 1, 2019 over the phone with the CCRB.

On December 11, 2018 at approximately 1:25 pm, § 87(2)(b) interacted with officers assigned to the 67th Precinct. § 87(2)(b) was inside § 87(2)(b), when PO Matthew Walker, directed by Sgt. Charles Schwartz, entered and asked § 87(2)(b) to go outside (**Allegation A: Abuse of Authority- Substantiated**). PO Hector Casillas then frisked and searched § 87(2)(b) (**Allegations B and C: Abuse of Authority- Substantiated**). § 87(2)(b) called a friend on his cell phone, and Sgt. Schwartz told him that if he did not put his phone away, he would be arrested (**Allegations D: Abuse of Authority- Exonerated**). Sgt. Schwartz did not provide § 87(2)(b) with a business card § 87(2)(g), § 87(4-b) § 87(2)(b) (**Allegation E: Abuse of Authority- Substantiated**; § 87(2)(g), § 87(4-b)

§ 87(2)(b) was neither arrested nor issued a summons.

Body-worn camera footage was obtained for this case and captured part of the incident (Board Reviews 01, 02, 03, and 04).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Charles Schwartz stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Hector Casillas frisked § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Hector Casillas searched § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Charles Schwartz threatened to arrest § 87(2)(b)

Minutes prior to interacting with § 87(2)(b) Sgt. Schwartz, PO Casillas, Det Walker, and Detective Devin Baker, of the 67th Precinct, arrested § 87(2)(b) for § 87(2)(b) approximately half a block west of § 87(2)(b). Sgt. Schwartz and Det. Baker testified that they observed one additional individual involved in a drug transaction with § 87(2)(b). This individual fled immediately as the officers approached § 87(2)(b) (Board Reviews 06, 07 and 08).

§ 87(2)(b) testified that he was standing outside the entrance to § 87(2)(b) when he observed officers effect an arrest. § 87(2)(b) stated that, throughout this incident, he wore a badge around his neck from his job as a security guard. § 87(2)(b) entered the clinic, then went back outside to observe the officers. An officer, identified by the investigation as Det. Walker, intermittently looked at § 87(2)(b) and looked away, which § 87(2)(b) interpreted as him trying to watch § 87(2)(b) without § 87(2)(b) noticing. § 87(2)(b) then re-entered the clinic. Det. Walker entered § 87(2)(b) and told him to step outside. Det. Walker then asked the receptionist if § 87(2)(b) had an appointment and she told him that he did not (he acknowledged that he did not have an appointment). § 87(2)(b) complied and exited the clinic. An officer, identified by the investigation as PO Casillas, then placed his hands in § 87(2)(b) § 87(2)(b) pockets on the front of his sweatshirt. § 87(2)(b) then called his friend, § 87(2)(b) § 87(2)(b) on his cell phone. Sgt. Schwartz told § 87(2)(b) that if he did not put his cell phone away, he would be arrested. § 87(2)(b) then put his phone away. Sgt. Schwartz asked § 87(2)(b) for his ID, and he provided it. The officers told § 87(2)(b) that they had stopped him because he resembled someone they had recently observed in a narcotics transaction, and left (Board Review 05).

BWC footage from PO Casillas opens on § 87(2)(b) § 87(2)(b) with PO Casillas speaking to § 87(2)(b), an individual who was accompanying § 87(2)(b), while Det. Baker speaks to § 87(2)(b) § 87(2)(b). The footage does not capture the initial narcotics transaction for which § 87(2)(b) was arrested. PO Casillas asks § 87(2)(b) § 87(2)(b) whether he saw the other person involved in the drug transaction. § 87(2)(b) § 87(2)(b) just shrugs his

shoulders. PO Casillas then tells § 87(2)(b) to walk away, and he does so. At approximately the 4:50 time stamp on the video player, PO Casillas bends over at § 87(2)(b) and can be heard saying he found a “couple decks”. (PO Casillas clarified in his testimony that “decks” referred to envelopes containing heroin.) At approximately the 5:08 Sgt. Schwartz tells PO Casillas and Det. Walker to stop an individual wearing green, sitting on the porch of a doctor’s office, and points offscreen in the direction of § 87(2)(b). Det. Baker seems unsure, saying, “that’s him?” Det. Walker and PO Casillas walk to § 87(2)(b), enter, and ask § 87(2)(b) to step outside. At approximately 6:45 in the video’s player, § 87(2)(b) exits and PO Casillas asks him to take his hands out of his pockets. Det. Walker is then heard also asking § 87(2)(b) to keep his hands out of his pockets. § 87(2)(b) pockets are not visible in the video. PO Casillas then touches the outside of the backpack § 87(2)(b) is carrying on the front of his body, and briefly pulls on the lip of the open bag and opens it slightly further by partially reaching into the inside of the drawstring closure with the index and middle fingers of his right hand, pats the outside of the bag briefly again, and again pulls the lip open by partially reaching inside it, this time with both hands. § 87(2)(b) can be seen wearing a gray sweatshirt, a black ski mask, and a gold colored badge on his chest. At 8:10, § 87(2)(b) dials on his cellphone, and Sgt. Schwartz and Det. Walker tell him to get off his phone five times. The footage does not show whether § 87(2)(b) complied with these instructions. At approximately 9:10, § 87(2)(b) again dials on his cell phone, and Sgt. Schwartz tells him “get off the phone or you’re gonna go in handcuffs.” Starting at 12:45, Sgt. Schwartz explains to § 87(2)(b) why they stopped him. Sgt. Schwartz tells § 87(2)(b) that he saw a narcotics transaction in front of the location. One male walked off but the other walked toward Sgt. Schwartz, who he then stopped. Sgt. Schwartz stated that he turned his back and did not get a good look at the second individual involved in the transaction because he had locked his eyes on male that he stopped (§ 87(2)(b)). Sgt. Schwartz specified that they stopped § 87(2)(b) to make sure that “[he wasn’t] the person.” Sgt. Schwartz apologized for the inconvenience and the officers leave (Board Review 01).

Sgt. Schwartz testified that he and Det. Baker observed two individuals engage in a hand-to-hand transaction near § 87(2)(b), which he believed from his training and experience to be for narcotics. Sgt. Schwartz observed one of the individuals, whom he believed to be the buyer, walk westbound on Linden Boulevard, towards the officers, and the other walk in the opposite direction. Sgt. Schwartz and Det. Baker arrested the buyer, § 87(2)(b), for the transaction. Sgt. Schwartz observed § 87(2)(b) at the doorway to § 87(2)(b) and believed him to be the other person involved in the narcotics transaction. Sgt. Schwartz did not recall the appearance or clothing of the second individual involved in the transaction. Sgt. Schwartz spoke to § 87(2)(b) and determined that § 87(2)(b) would not be arrested but did not recall why. Sgt. Schwartz did not recall any officer patting down § 87(2)(b) or searching any of his pockets. Sgt. Schwartz stated that § 87(2)(b) was free to leave throughout this interaction. He did not recall § 87(2)(b) being on his phone at any point, or threatening to arrest him if he did not put his phone away. Upon being shown his BWC footage, Sgt. Schwartz stated that he did not recall why § 87(2)(b) was not arrested (Board Review 08).

Det. Walker testified that he responded to a call from Sgt. Schwartz requesting his assistance with a person under arrest. Upon arriving on scene, Sgt. Schwartz directed him to stop § 87(2)(b) who was standing approximately 100 feet away, in the doorway of Downstate Foot and Ankle. Det. Walker asked § 87(2)(b) to step outside, and an officer (he did not recall which) patted him down for weapons. Det. Walker stated that the officers had no specific reason to think § 87(2)(b) was armed, and that he was patted down only for the officers’ safety (Board Review 07).

PO Casillas testified that he and Det. Walker responded to a call from Sgt. Schwartz asking for backup with an arrest for a narcotics transaction. Upon arriving on scene, Sgt. Schwartz told PO Casillas to go apprehend the second individual involved in the transaction, whom Sgt. Schwartz had

seen walk into § 87(2)(b) down the street. Sgt. Schwartz further told the officers that the individual was wearing green and gave additional physical descriptions which PO Casillas did not recall. PO Casillas and Det. Walker entered the clinic, and told § 87(2)(b) to step outside, and § 87(2)(b) did so. PO Casillas asked § 87(2)(b) to take his hands out of his pockets and § 87(2)(b) initially complied for a short while but returned them to his pockets several times, eventually keeping them outside after several requests from PO Casillas. PO Casillas stated that this behavior made him suspicious that § 87(2)(b) might be armed. PO Casillas stated that, during a stop related to a narcotics arrest, the procedure he would follow would be to frisk an individual as a “general safety precaution,” which would be done any time officers suspected that an individual might be armed. PO Casillas felt the outside of § 87(2)(b) pants pockets. § 87(2)(b) wore a drawstring bag around his neck on the front of his body. Once shown his BWC footage, PO Casillas acknowledged patting down the outside of the bag and opening the top of the bag, stated that he did this for the same reasons that he had felt the outside of § 87(2)(b) pockets. He then stated that he opened the bag and looked in because he felt a hard object inside which he believed at the time may have been a weapon. PO Casillas did not recall reaching into the bag. PO Casillas stated that, had he not felt a hard object when frisking the bag’s exterior, he would not have opened it to look inside. PO Casillas walked around the immediate vicinity of the Foot Clinic and looked for any evidence dropped on the floor, but did not find any (Board Review 09).

Det. Baker testified that he remained with the prisoner § 87(2)(b) § 87(2)(b) and did not know what Det. Walker and Sgt. Schwartz did after the narcotics arrest was made (Board Review 06).

§ 87(2)(g)

Officers may stop an individual if they have a reasonable suspicion that he has committed, is committing, or is about to commit a crime. Officers may frisk an individual if they reasonably suspect that the individual is armed, People v. De Bour 40 N.Y. 2d 210 (Board Review 10). Officers may search an individual’s bag for weapons upon feeling them during a justified frisk of said bag, People v. Cartagena, 189 A.D.2d 67 (Board Review 17).

A person is guilty of obstructing governmental administration when he intentionally prevents an officer from performing an official function, NY Penal Law §195.05 (Board Review 18).

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **substantiated**.

PO Casillas cited that the fact that this was a narcotics investigation, coupled with § 87(2)(b) repeated failure to comply with orders to take his hands out of his pockets, made him suspicious that § 87(2)(b) might have been carrying a weapon. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended **Allegations B and C** be closed as **substantiated**.

BWC footage shows that, upon § 87(2)(b) taking out his cell phone, Sgt. Schwartz asked him to put his cell phone away four times one after the other. § 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **exonerated**.

Allegation (E) Abuse of Authority: Sergeant Charles Schwartz failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that none of the officers offered him a business card (Board Review 05).

Sgt. Schwartz testified that he did not give § 87(2)(b) a business card as he did not have any at the time, (Board Review 08).

Officers are required to carry an appropriate amount of business cards and offer them to an individual at the conclusion of a pedestrian stop, NYC Administrative Code 14-174 (Board Review 11).

§ 87(2)(g)

it is therefore recommended that **Allegation E** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (Board Review 12).
- Sgt. Schwartz has been a member-of-service for 11 years and has been a subject eight CCRB complaints and 16 allegations, none of which were substantiated. § 87(2)(g) [REDACTED].
- PO Casillas has been a member-of-service for seven years, and has been a subject in five CCRB complaints and 11 allegations, none of which were substantiated. § 87(2)(g) [REDACTED].

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of March 23, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed with regard to this complaint (Board Review 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 1

Investigator: Inv. Saavedra 10/28/2020
Signature Print Title & Name Date

Squad Leader: Mgr. Joy Almeyda 10.29.20
Signature Print Title & Name Date

Reviewer:
Signature Print Title & Name Date